

Approved as to
form only:
[Signature]
Date: 7/18/18

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION ACKNOWLEDGING THE RECEIPT OF THE FEASIBILITY STUDY FOR THE CHEYENNE MUNICIPAL COURTS, AND AUTHORIZING THE CITY ATTORNEY TO EXPEDIENTLY PURSUE ALL ACTIONS REQUIRED TO COMPLETE THE PURCHASE OF THE REAL PROPERTY LOCATED AT 308 WEST 17th STREET, IN THE CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING."

WHEREAS, on May 2, 2017, voters approved a one percent (1%) Specific Purpose Sales and Use Tax to raise Nine Million Dollars (\$9,000,000.00) for the construction of a new Municipal Court; and

WHEREAS, on May 14, 2018, the Governing Body approved the purchase of Real Property located at 308 West 17th Street in the City of Cheyenne, Laramie County, Wyoming, through City Contract #6835; and

WHEREAS, as a condition precedent to the City's obligation to close the transaction, the Governing Body required that "an analysis of the Real Property, as directed by the Cheyenne City Council, shall demonstrate that the cost to purchase the Real Property, demolish the existing structure, remediate the site, and construct a new one-story building thereon, shall not exceed Nine Million Dollars (\$9,000,000.00)"; and

WHEREAS, the firm of Noel Griffith Jr. & Associates Architects was retained to direct the study and report back to the Governing Body; and

WHEREAS, the Feasibility Study delivered to the City on July 18, 2018, attached hereto, determined that the total cost to fulfill the condition precedent is Eight Million Eight Hundred Sixty-One Thousand Dollars (\$8,861,000.00).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

1. Receipt of the Feasibility Study for the Cheyenne Municipal Courts is hereby acknowledged; and

2. The City Attorney is authorized to expediently pursue all actions required to complete the purchase of the Real Property located at 308 West 17th Street, in the City of Cheyenne, Laramie County, Wyoming.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2018.

Marian J. Orr, Mayor

(Seal)

ATTEST:

Carol Intlekofer, City Clerk

FEASIBILITY STUDY

CHEYENNE MUNICIPAL COURTS

PROJECT COST MODEL

FOR 308 WEST 17TH STREET

City of Cheyenne
Public Works Department
July 16, 2018

noel griffith jr. &
associates architects

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01 EXECUTIVE SUMMARY

The Cheyenne Municipal Courts are currently in a temporary location while the City Council and City of Cheyenne consider the purchase of 308 West 17th Street. The City Council has asked the City of Cheyenne to further investigate the possibility of utilizing this site for the permanent location of the Municipal Courts within the Project Budget of \$9 million. The existing building on this site has been vacant for 15± years with minimal upkeep, therefore the existing condition of the building presents concerns regarding safety and potential impacts on the Project Budget. Noel Griffith, Jr. & Associates Architects, the project architect for the Municipal Courts Project, has assembled a Design Team to review the information related to this investigation and present the findings in a Feasibility Study.

Information pertaining to the existing condition of the site was obtained by the City and provided to the Design Team for review. This information included a Phase I Environmental Site Assessment, an Asbestos Containing Material Survey and Work Plan, as well as a Topographic and Boundary Survey. The Phase I Environmental Site Assessment concluded that a Phase II Environmental Site Assessment is not warranted, and the most significant environmental risk is the confirmed presence of asbestos containing material. The Asbestos Containing Material Survey confirmed and located the asbestos containing materials and this information was used to establish a budget for abatement. The Topographic and Boundary Survey provided the information needed to confirm that this site meets the initial program requirements as established for the Site Proposal Location Evaluation.

The NGA Design Team conducted a Structural Assessment of the existing building and determined the shoring requirements for asbestos abatement as well as investigated the structural connection of the structure immediately adjacent to the west. The findings from this report indicate that abatement can be accomplished by utilizing the structural shoring methods outlined in the report and the building on this site can be demolished without compromising the structural integrity of the adjacent building.

The Design Team compiled and reviewed the information provided by the City and the information obtained in this investigation to present in this Feasibility Study. Every attempt to account for typical construction obstacles and challenges was made to establish a responsible Project Cost Model. The Project Cost Model, at this early stage of the Project, is based on industry standard pricing and preliminary assumptions, including the project consisting of a one-story building without a basement. The findings validate that the \$9 million Project Budget is adequate to complete the Municipal Court Project at 308 West 17th Street, as the cost analysis indicates that the preliminary cost model reflects a Project cost of eight million, eight hundred sixty-one thousand dollars (\$8,861,000).



02 INTRODUCTION

The Cheyenne Municipal Courts (Courts) are currently located in the City Municipal Building at 2101 O'Neil Avenue, a temporary location due to the Courts vacating the County Building. The City of Cheyenne (City) is considering the purchase of 308 West 17th Street (Site) to serve as the permanent location for the Courts.

The City Council (Council) wishes to confirm the costs associated with the demolition of the existing structure on the Site to validate the preliminary demolition budget of \$1.2 million prior to authorizing the purchase of the property. Council's end goal is to ensure that the existing structure can be demolished, and a single-story Municipal Court building can be built at this location within the \$9 million Project Budget.

To accomplish the goal of Council, to confirm that this project can be completed within budget, the City has requested professional services to review the information it has received thus far and to complete the cost analysis of the Courts Project Budget for Council's review. Noel Griffith, Jr. & Associates Architects (NGA) has assembled a team of professionals (Design Team) to accomplish this task and present the findings in this Feasibility Study. The Design Team also worked closely with Trihydro Corporation and Terracon Consultants, Inc. who were hired directly by the City.

The Design Team consists of the following professionals:

- Noel Griffith, Jr. & Associates Architects (NGA), Architect.
- KL&A Structural Engineers and Builders (KL&A), Structural Engineer.
- S&S Builders LLC (S&S), General Contractor (GC), cost consultant.
- Asbestos & Technical Services LLC (ATS), General Abatement Contractor (GAC), cost consultant.

2.1 ARCHITECTURAL SUMMARY

This Site has been frequently referred to as the Fowler Building, Zs Furniture, and the Carey Building. The address has varied over the years and has included 300 - 308 West 17th Street. It is located on the corner of Carey Avenue and 17th Street in Cheyenne, Wyoming. It appears the original building was built in 1876 with several additions and remodels since, with historically retail space on the main level and basement with apartments located in the upper levels. The building underwent a major renovation in the 1950's that included removing several of the interior walls on the main level, as well as the addition of the exterior metal façade and steel awnings. The property has been vacant for 15± years with minimal upkeep. There have been several active roof leaks, broken windows, and water pipe leaks that have led to concerns with the bird infestation and extensive mold growth, as well as water damage to finishes and structural elements. The building has asbestos containing materials on both the interior and exterior of the building.

The existing building on this Site is primarily a two-story building with a portion of the building extending to 3 stories. This building has a partial basement under a majority of the original building footprint. The building footprint is approximately 132 feet (along Carey Avenue) and 109 feet (along 17th Street), for a total of approximately 14,500sf. The Site itself is 0.33 acres in size and is relatively flat with a gentle slope to the southeast corner of the lot. The Site is not located in the FEMA flood zone. The Site is listed as a non-contributing structure on the State or Federal Historic Registry.

The current use of adjoining properties to the Site: North - Alley and Nelson Museum of the West; East, Carey Avenue and Provisions Wine & Spirits; South - West 17th Street and Pioneer Avenue Parking Garage and Cheyenne Transit Program; West - Collectors Club, Knights of Pythias, and Bohemian Metals.

Refer to Appendix I for site and existing building photos for reference.

2.2 ASSUMPTIONS

Certain assumptions were made to complete this Feasibility Study for the Courts Project Budget analysis. These assumptions are based on information obtained from preliminary program discussions with the City and the Courts in regard to the Temporary Relocation Project (December 2017) and the Site Proposal Evaluation (January 2018).

2.2.a Time frame

It is assumed that the design and construction of the Courts Project is desired to be completed as soon as possible. The project completion time line's effect on the project budget will be discussed in the Budget Analysis Section.

2.2.b Historic

This Site is listed as a non-contributing structure and is not on the National or Wyoming Historic Registry.

Reference: United States Department of the Interior National Park Service
NATIONAL REGISTER OF HISTORIC PLACES
REGISTRATION FORM, 1996 Downtown Cheyenne Historic District (Boundary Increase)

Site Description: On the northwest corner of Seventeenth and Carey Avenue is the Carey Block (No. 17) which was originally a two-story brick, stone and cast-iron structure heavily corniced with large floor-to-ceiling store front windows. Unfortunately, the new facade for Z's Home Furnishings (formerly Fowlers) has hidden all traces of its early design from view and has made the structure's appearance intrusive within the District.

... the Carey Block (No. 17), a large two-story brick building, was constructed in the mid-1880s on the northwest corner of Carey Avenue and Seventeenth Street. It held multiple street level businesses. It was named after Joseph M. Carey, a pioneer cattle rancher who became one of Wyoming's foremost political figures. He was a territorial judge, Mayor of Cheyenne, a U.S. Senator, and Governor of Wyoming. He also helped found the Wyoming Stock Growers Association and the Cheyenne Club. Unfortunately, subsequent exterior modifications have completely hidden this fine building.

Classification: NC-0, Non-Contributing Intrusive.

A rating of 0 or Intrusive is given to modern buildings within the District whose style, proportions, and materials are wholly inconsistent with any of the historic building periods in the Downtown Cheyenne Historic District, and have no contributing potential. In conclusion, the exterior changes to a particular building are cumulative, so that as the alterations become more numerous or extensive, the overall rating of the integrity of the building decreases.

It is assumed that this project will not pursue a historic rehabilitation or historic replica in the design or construction of the Courts building on this Site. If it is desired to rehabilitate the existing façade, a more extensive architectural and structural evaluation of the building will be needed to ascertain what additional structural elements or techniques would be needed to accomplish this and how|if this existing structure will meet the program needs of the Courts. Both a historic rehabilitation and historic replica will have impacts on the Project Budget which will be discussed in the Budget Analysis section.

2.2.c Zoning + Site Parameters

This Site is zoned Central Business District (CBD). The Courts being a Government Facility are permitted in the CBD. There are no building setbacks, maximum lot coverage, or building height restrictions. No parking



is required in the CBD district; however, if parking is provided all maximum quantity, location, design standards and specific limitations in the Cheyenne Unified Development Code (UDC) will apply.

It is assumed that the Courts facility will maximize the building footprint as the Site allows. It is also assumed that on-site parking will be required for staff parking and the public will utilize the Spiker Parking Structure as discussed in early programing discussions.

2.2.d Other assumptions

To establish budget parameters, it is assumed that this project involves designing and constructing a single level (above grade) structure with industry standard exterior design elements and construction materials. This building will be slab-on-grade with no basement or crawl space. The Courts will be the only tenant in the building.

2.3 Owner provided Items

The following Owner (City) provided items are referenced herein and are included in the appendices.

2.3.a Phase I ESA and ACM survey

The City provided reports of the Phase I Environmental Site Assessments (ESA) and Asbestos Containing Material (ACM) Surveys for the Design Team's review which are discussed in Section 04.

- 2018 Terracon ACM Survey: prepared for the City of Cheyenne
- 2018 Terracon Asbestos Abatement Work Plan (AAWP): prepared for the City of Cheyenne
- 2018 Trihydro Phase 1 ESA and ACM survey: prepared for the City of Cheyenne, includes:
 - 2016 Ayres Associates Phase I ESA: prepared for the City of Cheyenne, Cheyenne Downtown Development Authority, and Laramie County
 - 2006 Terracon ACM Survey: included in the 2016 Ayres Phase I ESA

2.3.b Site Survey

The City provided a site survey that was completed by Steil Surveying Services LLC (Appendix D). This site survey provided information on property lines, existing building locations, easements, rights-of-way, utility locations, utility depths, size of services, and spot elevations on perimeter. The Site Survey is discussed in the Site Survey section.

2.3.c Demolition Cost Estimate

The City solicited an estimate for abatement and structural demolition from Rocky Mountain Demolition, Inc. (Appendix F). This estimate has been reviewed by the Design Team and will be discussed in the Budget Analysis section.

2.3.d Miscellaneous Information

The City provided the Design Team with information previously obtained in the Municipal Court Location Proposal Evaluation, January 2018, RFP 14-18. There were two proposals submitted for this Site, one being from Jim Weaver and the Affinity Ventures LLC that includes a conceptual estimate for the demolition of the building on this Site from Redco Construction (Appendix E). The other proposal response was from Chuck West, Esq. CCIM, Broker #1 Properties Inc. on behalf of the current Owner stating the purchase price (Appendix A).

03 STRUCTURAL ASSESSMENT

Due to the age and condition of the existing building on the Site and the potential impact on project budget, the structural condition of the building was investigated. The information provided in the Trihydro Phase 1 ESA (Appendix A) regarding surface soils and groundwater conditions are reviewed below as well as the Structural Assessment for Abatement Activity (SA) completed by KL&A, Inc. (Appendix H)

3.1 2018 TRIHYDRO PHASE I ESA

2018 Trihydro Phase 1 ESA, Section 2.3, discusses surface soils, which do not pose a structural concern for this Site. It is important to note that soils testing will need to be completed to provide the needed information for a proper structural design. We recommend this to be completed after demolition is complete and the site has been backfilled with structural fill, as designed by a geotechnical engineer. This is typical for any construction project of this size.

2018 Trihydro Phase 1 ESA, Section 2.4 states that the groundwater at the Site is unknown, however the anticipated depth to groundwater, based on nearby monitoring wells, is approximately 11 to 15 feet below ground surface. Since a basement is not proposed for this project, it is anticipated that no specialized structural considerations will be needed for groundwater issues.

3.2 KL&A STRUCTURAL ASSESSMENT

KL&A's Structural Assessment (SA) focused on observing the existing conditions of the building and identifying areas of structural concern regarding worker safety during the abatement process and identifying locations where temporary shoring of the structure is recommended. KL&A also assessed the structural attachment of the Carey Building to the adjacent building to the west and the potential impacts to the demolition.

3.2.a Areas of Structural Concern for Abatement Activities

Over the years, the building has had extensive water damage from apparent leaky roofs and water pipe leaks in basement. The majority of the damage observed was to the ceiling, floor, and wall finishes. However, there are areas within the building that the structural roof and floor decking, roof rafters and floor joists have visibly degraded enough to be of concern for abatement activity. Included in this Section is a summary of the SA recommendations in conjunction with the areas of abatement activities that are affected by these structural concerns for reference.

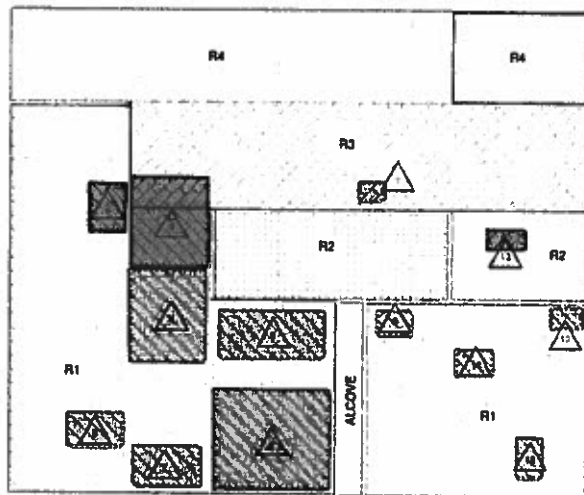
Structural Decking Shoring: There are several areas of potential hazards of localized structural decking decay on the roof as well as an area on the 2nd floor. It is recommended that any abatement activities on areas that appear to have decay or degradation to the roof/floor decking are performed from ¾" structural plywood decking laid on top of, and perpendicular to, existing solid joist framing. The decking does not need to be physically attached to the existing floor/roof structure and therefore may be moved and reused in other work areas. It is recommended that any abatement activities on the roof utilize this method.

Joist/Rafter Shoring: The areas indicated in the SA to be of structural concern with the condition of the existing joists and rafters where abatement activities are required will need to be supported by temporary structural framing for the duration of the abatement mitigation activity in the area. The temporary framing may consist of 2x stud wall framing or wood/steel beam framing supported by series of wood or steel columns placed beneath the suspect joists. Blocking between existing joists to prevent rolling of the joist shall be installed. These shoring lines shall be added at each level below the specified level down to the

basement or main level as noted in the SA. Note that in many areas, use of the Structural Decking Shoring will need to be used in conjunction with the Joist|Rafter Shoring method.

Joist|Rafter Strengthening: There is an area in the roof with observed degradation in structural roof decking, structural roof rafters and ceiling joists. The SA proposes to strengthen roof rafters in this area with new 2X material of comparable depth installed from the 2nd level if abatement is required in this area. The use of the Structural Decking Shoring will need to be used in conjunction with this method.

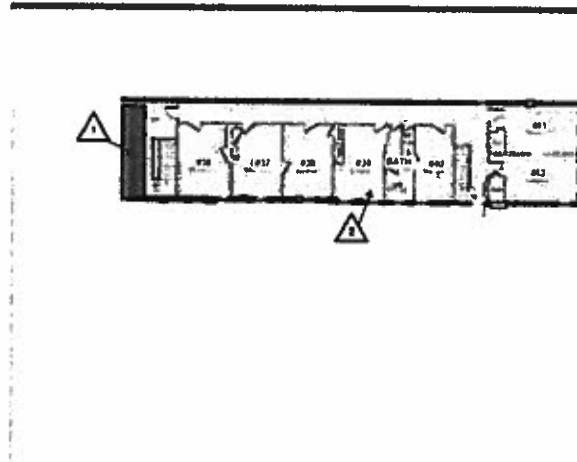
Below are illustrations to show the correlation between the areas of structural concern with the areas of abatement activity affected. These illustrations do not identify all areas of abatement activity. The illustrative plans of the basement and main level are not included as there is no additional shoring or strengthening required other than the continuation of the shoring required from the levels above. If the abatement requires the removal of significant areas of structural decking or concrete slab on grade, then temporary shoring of the rubble foundation or staged removal of the decking|slabs and replacement of decking may be required.



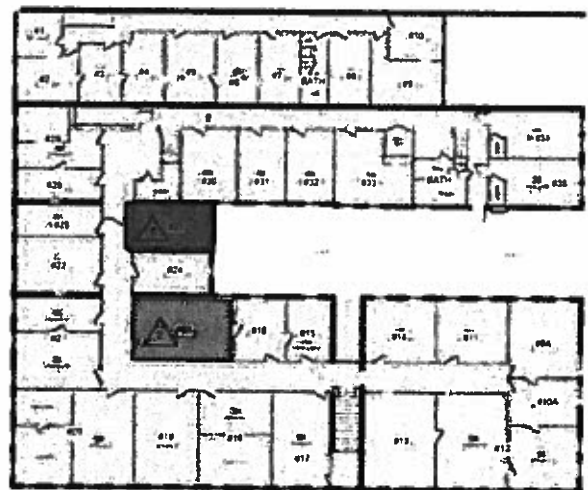
Areas of Abatement Activities impacted by structural concerns

-  Structural Decking Shoring
-  Joist|Rafter Shoring (to Basement)
-  Joist|Rafter Shoring (to Main Level)
-  Joist|Rafter Strengthening

Illustrative Roof Plan



Illustrative 3rd Floor Plan



Illustrative 2nd Floor Plan



3.2.b Demolition Notes

As stated in the SA, the structural framing along the two-story west wall of the Carey Building appears to frame into and bear on the adjacent building along a majority of the west wall. The joists appear to be pocketed into the wall, no physical attachment of the joist to the wall was observed. Therefore, it appears that the Carey Building can be demolished without compromising the structural integrity of the adjacent building. Selective demolition should still be performed in the area to confirm there is no physical attachment prior to full demolition.

It is important to note that if the new building on this Site does not extend to the same height as the existing structure proposed to be demolished, there may be some repair façade work needed to the building adjacent to the west. This has been accounted for in the Project Cost Model.



04 2018 PHASE I ESA REVIEW

This section will provide a brief overview the 2018 Trihydro Phase I ESA (Appendix A) and the suggested solution to remedy the environmental conditions of concern.

The cover letter for this report from Trihydro, provides an overall summary of the report findings:

Based upon the findings in the Phase I ESA, Trihydro does not believe that a Phase II ESA is warranted at this time. The RECs, HRECs, and CRECs that were identified at off-site properties do not appear to pose a subsurface concern to the Site. As noted, the most significant business environmental risk at this time is the confirmed presence of asbestos containing materials.

The Phase I ESA was intended to reduce, but not eliminate, uncertainty regarding the potential for environmental concerns for this Site. Due to a Phase II ESA not being recommended, the findings in Phase I will be reviewed and assessed accordingly; solutions to remedy the known environmental conditions will be presented in this section.

4.1 DEFINITIONS

The following definitions are excerpts from 2018 Trihydro Phase I ESA for reference:

REC: the presence or likely presence of any hazardous substances or petroleum products on a site under conditions that indicate an existing release, a past release, or a material threat of a release of any hazardous substances or petroleum products into the structures on the site or into the ground, groundwater, or surface of the site.

HREC: an environmental condition which has been dealt with appropriately so that it no longer limits the property's use of activities.

CREC: site where contamination is present but is controlled but could still pose ongoing to future obligations for the owner, such as special precautions during development. Properties that may be present in this category would be those with deed restrictions, vapor barriers, or other engineering controls designed to eliminate exposure pathways to human and/or environmental receptors.

BER: risk which can have a material environmental or environmentally driven impact on the business associated with the current or planned use of a parcel of commercial real estate, not related to those environmental issues required to be investigated in this practice.

Vapor Intrusion: Vapor intrusion occurs when vapor-forming chemicals migrate from a subsurface source into an overlying building -- similar to radon gas seeping into homes. These chemicals can produce vapors that migrate through the subsurface and into indoor air spaces.

In some cases, the vapors can accumulate within the building and increase to levels that may pose a health and safety risk. According to the EPA, testing for vapor intrusion can be challenging due to the potential presence of some of the very same chemicals within the building-- therefore making it challenging to determine the source of chemical emission.

When mitigating vapor intrusion, there are a number of viable techniques which differ in both their approach and long-term effectiveness, these approaches include:

- **Source Remediation (SR)** -- removing the actual contaminated soil/groundwater will eventually eliminate vapor intrusion.
- **Vapor Intrusion Barriers (VIB)** -- installing a physical, chemical resistant barrier material. Typically, a polyethylene sheet that is below the slab and foundation of the structure.

- **Ventilation Systems (VS)** – installing a ventilation and exhaust system to remove the contaminated air from within or beneath the building. Forced or mechanical ventilation may be accomplished by using a fan to blow air into or out of the building.

For any site, the source remediation approach is typically a cost-prohibitive method to mitigating the possible vapor intrusion. Typically, vapor intrusion mitigation uses both the vapor intrusion barrier plus a passive or active ventilated system.

By using the relatively inexpensive plastic sheet barrier, the intrusion pathway is blocked, and a sub-slab ventilation system takes those vapors out from under the building.

For construction of new buildings, there are five basic components to effective vapor intrusion resistant construction:

1. Permeable sub-slab support material (e.g., gravel)
2. Venting all sub-slab areas below occupied spaces
3. Properly-sized sub slab and riser piping
4. A sealed vapor barrier
5. Properly designed passive or active venting system to maintain sufficient negative pressure beneath the slab.

4.2 REVIEW OF THE 2018 TRIHYDRO PHASE I ESA RESULTS

The items the 2018 Trihydro Phase I ESA found to be REC, HREC, CREC, or BER are listed in the table included in this section, as well as the proposed solution to remedy. All topics and suggested solutions will be reviewed and discussed further in the sub-sections herein.

Previous Environmental Assessments	REC	See related topic areas below	4.2.a
Regulatory Agency Review	RECs + HRECs	Vapor Intrusion Barrier + Ventilation System	4.2.b
Vapor Intrusion Exposure	REC	Vapor Intrusion Barrier + Ventilation System	4.2.c
ACM	BER	Remove with demolition	4.2.d
Lead Based Paint	unknown	Remove with demolition	4.2.e
Mold/Mildew	BER	Remove with demolition	4.2.f
Bird Infestation	BER	Remove with demolition	4.2.g

4.2.a Previous Environmental Assessments - REC

The 2018 Trihydro Phase 1 ESA references the 2016 Ayres Phase I ESA which includes a 2006 Terracon Asbestos Survey Report. The 2006 Terracon Report identified potential ACMs as an on-site REC. The 2016 Ayres Phase I ESA identifies the Cheyenne PCE Plume as an off-site REC.

Potential AMCs: on-site REC: As summarized in 2018 Trihydro Phase 1 ESA, the 2006 Terracon ACM Survey confirmed that the following materials contain asbestos: ceiling tile, window caulking, floor tile, vinyl sheet flooring, duct tape, leveling compound, textured paints, wall insulation, and pipe insulation. The 2006 Terracon ACM Survey did not survey or sample the roof, exterior building envelope, or inaccessible piping.



Due to the age of the 2006 Terracon ACM Survey, NGA contacted Linda Dewitt, Asbestos Program Coordinator, Wyoming Department of Environmental Quality, to confirm that the ACM Survey could be considered valid and received the following information:

An inspection is valid as long as it covers the building materials that are still present in the building. Often, asbestos inspections are performed to determine if current building finishes at the time contain asbestos and then renovation is performed to change or remove those finishes. If you can prove (by photos or written statement from the original inspector) that the materials present are the same materials that the original inspector examined, then that inspection can be used.

If new or replacement materials were installed after the previous inspection, then only those new/replacement materials would have to be inspected to determine if they are suspect and potentially sampled.

The City hired Terracon to update and complete the 2006 Terracon ACM Survey to meet the WDEQ requirement. The findings of Terracon's updated ACM Survey are included in Appendix B and discussed in section 4.2.d Asbestos Containing Materials - BER.

Cheyenne PCE Plume: off-site REC: Trihydro referenced the 2016 Ayres Phase 1 ESA regarding the Cheyenne PCE Plume as an off-site REC. The excerpts from the 2016 Ayres Phase I ESA for reference:

- **2016 Ayres Associates Phase 1 ESA:** Cheyenne PCE Plume CERCLIS site, located near West 26th Street and Pioneer Avenue. This plume is mapped approximately 0.58 miles north of the subject property and extends at least as far south as West 22nd Street, which is 0.3 miles northeast of the subject property. According to WDEQ staff, there is a second orphan site plume located to the northwest that is not listed on regulatory database at this time.
- **2016 Ayres Associates Phase 1 ESA:** The subject property's down-gradient location in proximity to the Cheyenne PCE Plume CERCLIS site is considered to be a REC. The extent of groundwater and vapor impacts is currently unknown but reach at least as far south as West 22nd Street, 0.3 miles northeast of the subject property. Additionally, an interview with WDEQ staff indicates a second smaller orphan plume several blocks northwest of the subject property, but the extent of impacts has not yet been documented. These factors suggest the likely presence of groundwater and soil vapor contaminated with chlorinated solvents at the subject property.

To address the issue of the potential impacts of the Cheyenne PCE Plume on this Site, a Vapor Intrusion Barrier and Ventilation System will be incorporated into the design and construction of this project.

4.2.b Regulatory Agency Review – RECs and HRECs

Numerous surrounding properties were identified within regulatory databases with open or unresolved environmental issues that are identified as RECs and HRECs with respect to the site. Trihydro stated that it appears that this Site has numerous potential for impacts to indoor air quality and a vapor encroachment concerns (VEC), however indoor air quality and vapor screening were not performed.

To address the issue of the potential impacts of the surrounding properties on this Site, a Vapor Intrusion Barrier and Ventilation System will be incorporated into the design and construction of this project.

4.2.c Vapor Intrusion Exposures - REC

Numerous surrounding properties have been identified with open |unresolved petroleum hydrocarbon and chemicals of concern impacts that pose a REC to the Site regarding indoor air quality. It is important to note that indoor air quality and vapor screening were not performed in the 2018 Trihydro Phase I ESA.

To address the issue of the potential impacts of the surrounding properties on this Site, a Vapor Intrusion Barrier and Ventilation System will be incorporated into the design and construction of this project.

4.2.d Asbestos Containing Materials - BER

An asbestos survey and sampling was performed by Terracon in 2006, where five hundred and five (505) samples were collected and submitted for analysis. As stated previously, the 2018 Terracon ACM Survey (Appendix B) intent was to update the information in the 2006 Terracon ACM Survey, including locating and identifying the ACMs from that report and addressing the roof and exterior façade materials that were not previously sampled. A destructive assessment of the building, which involves inspecting random wall cavities, voids, and other concealed areas was also conducted for the 2018 Terracon ACM Survey. During the site visit and documentation for the 2018 Terracon ACM Survey, additional interior suspect materials, not previously sampled in the 2006 survey, were observed. Terracon's scope of work was increased to include these suspect ACM.

A total of 191 bulk samples from 69 homogeneous areas of suspect ACM were taken during Terracon's 2018 ACM survey. These materials are further classified as Category I non-friable or Category II non-friable. A summary of the 2018 Terracon ACM Survey:

- The materials that were identified to be Category I non-friable ACM and may remain in the building during demolition provided the materials remain non-friable during demolition are: Gray Roof Tar (R1 and R2), Flashing (R1), and Black Tar, Felt and Yellow Insulation (R1 alcove). If these materials are likely to become friable during demolition, they must be abated prior to demolition activities.
- The materials that were identified to be Category II non-friable ACM are: Gray Caulk on Metal Flashing (R1), White Window Caulk on Ground Level Windows, Marble Façade Grout on Exterior Façade, Exterior Stucco Soffit on Ground Level Entrances, Door Window Glazing on Exterior Alley Doors, R2 Door, and R3 Door, and Basement Door Room 25. These materials are likely to become friable due to demolition activities and should therefore be considered regulated ACM and be abated prior to demolition.
- The following suspect materials are assumed asbestos-containing materials: White Vibration dampener in Room 4, Air-cell Pipe Insulation in Basement Room 27, Pipe Fittings in Basement Room 29, Hidden Pipe Insulation in Basement Room 26, Friable Gaskets in Basement Room 28, Electrical Fuses in Hallway of 2-Story Apartments.
- The 2006 Terracon ACM Survey confirmed and the 2018 Terracon ACM located the following materials that contain asbestos: Ceiling Tile RMs 2,3,6 & 7; Floor Tile RMs 1, 4, 6, 8 closet, 10-17, 28, 29, 34, 35, 39-43; White HVAC Tape Rms 4, 21 & Mezz; Vinyl Sheet Flooring RMS 4 bath, 8-10, 11 bath, 14-17, 19, 20, 26, 28-40, Basement RM 26, RM4 stairwell to Mezz RM 28 Stair; Gray Insulation with Electrical Panel RM4, Hidden Apartments (2nd floor) – RM K; Textured Paint RM 8 & 14 walls + ceiling, RM 10, 11 and 12 walls; Leveling Compound RM 14; Pipe Insulation RMs 22, 26 & 27; Window Caulking third floor hallway.

The intent included in this Project is to remove ACM as required and to fully demolish the existing structure. Terracon completed an Asbestos Abatement Work Plan (AAWP) which addresses the scope of work for the removal of identified ACM materials from the building. This will be reviewed in the Budget Analysis Section.

With the completed demolition of the existing structure the BER associated with ACMs is removed and is no longer a concern for this Site.



4.2.e Lead Based Paint - unknown

A Lead Based Paint (LBP) inspection was not performed. If determination of painted surface lead content is required for worker protection or other reasons, a lead paint inspection should be performed.

NGA inquired as to the regulations and requirements regarding LBP with the following entities. It is the intent of this Project for full building demolition without the need to scrape any areas with LBP. The information obtained from each source is listed below.

- **Wyoming Workers' Safety (OSHA), Karen Godman, Consultation Supervisor:** OSHA regulates worker safety + protective gear, no other requirement
- **Wyoming Department of Environmental Quality, Linda Dewitt, Asbestos Program Coordinator:** no requirements for LBP
- **Wyoming Department of Environmental Quality, Brian Wood, Solid and Hazardous Waste Inspection, Compliance and Enforcement Inspector:** no requirements for LBP

With the completed demolition of the existing structure the BER associated with LBP is removed and is no longer a concern for this Site.

4.2.f Mold/Mildew - BER

Trihydro noted that due to water leaks and an active water main leak into the building, mold and mildew were observed throughout the structure.

NGA inquired as to the regulations and requirements regarding mold and mildew with the following entities. The information obtained from each source is also listed below.

- **Wyoming Workers' Safety (OSHA), Karen Godman, Consultation Supervisor:** OSHA regulates worker safety + protective gear, no other requirement
- **Wyoming Department of Environmental Quality, Linda Dewitt, Asbestos Program Coordinator:** no requirements for mold|mildew
- **Wyoming Department of Environmental Quality, Brian Wood, Solid and Hazardous Waste Inspection, Compliance and Enforcement Inspector:** no requirements for mold|mildew

With the completed demolition of the existing structure, the BER associated with mold|mildew is removed and is no longer a concern for this Site.

4.2.g Bird Infestation - BER

Trihydro noted that bird dropping and avian carcasses were observed throughout the structure which causes a dangerous environment. Histoplasmosis and Cryptococcus are two health risks that can result from exposure to bird infested building.

NGA inquired as to the regulations and requirements regarding bird dropping and avian carcass conditions with the following entities. The information obtained from each source is also listed below.

- **Wyoming Workers' Safety (OSHA), Karen Godman, Consultation Supervisor:** OSHA regulates worker safety + protective gear, no other requirement
- **Wyoming Department of Environmental Quality, Linda Dewitt, Asbestos Program Coordinator:** no requirements for bird infestation
- **Wyoming Department of Environmental Quality, Brian Wood, Solid and Hazardous Waste Inspection, Compliance and Enforcement Inspector:** no requirements for bird infestation

With the completed demolition of the existing structure, the BER associated with bird infestation is removed and is no longer a concern for this Site.

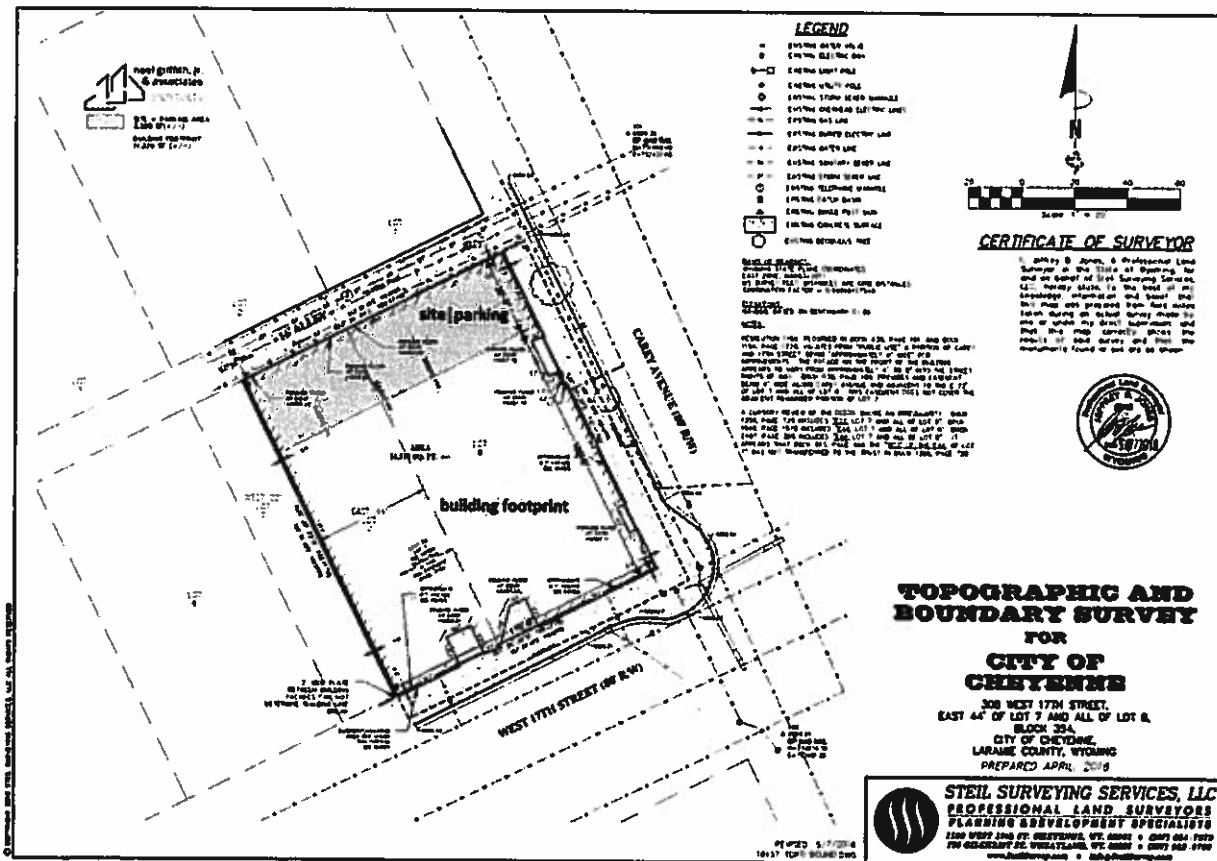
05 SITE SURVEY REVIEW

Steil Surveying Services, LLC provided the City with a Topographic and Boundary Survey (TBS) (Appendix D) for the Site. The Site is 109.8 ft x 133 ft, approximately 14,531 sf. As illustrated in this section, the Site appears to provide the required square-footage for an appropriate sized Court facility with minimal on-site parking for staff, as prescribed in RFP 14-18.

A conceptual design would need to be conducted to further investigate the space that is available for both parking and landscape in conjunction with a functional building footprint. This concept would also be used to work with the Development Office to deem what will be acceptable to meet the UDC requirements, this is typically completed in the City's Site Plan Review process.

It is important to note that the assumptions used to review this Site may not be the final program requirements of this Project. Once the final program is established, through a typical design process, a conceptual design is completed to illustrate the program graphically and spatially and then submitted for the Site Plan Review process.

The TBS also provided other useful site information such as site elevations, easements/vacations, utility locations, etc. The elevations show the site is fairly level. The overhead utilities are in the alley. The only easement/vacation appear to stem from the additional metal façade work and will not be an issue due to the building being demolished.



For illustration only



06 BUDGET ANALYSIS

Every attempt to foresee certain obstacles and challenges were made to establish a responsible Project Cost Model, however it is important to note that this is a cost model and not a guaranteed project cost. There are several variables that the City |Design Team| Contractor will have control over and there are other costs associated with this Project that are established|influenced by the industry. The Project Cost Model presented in this Report is based on preliminary assumptions as discussed throughout this Report and summarized in this Section. The Project Cost Model will be updated|adjusted after each design phase: Project Programming, Conceptual Design, and the Design Development. Each iteration of the Project Cost Model will allow the City and Design Team to evaluate the Project Program and align with the established Project Budget.

To establish a strong foundation for the Project Cost Model, NGA has included two cost consultants to contribute their expertise to establish and confirm the budgetary items included in the Project Cost Model:

Jerry Butcher, S&S Builders LLC, General Contractor (GC) – Cheyenne, Wyoming

David Blackwell, Asbestos & Technical Services LLC, General Abatement Contractor (GAC) – Cheyenne, Wyoming

6.1 PROJECT BUDGET ASSUMPTIONS

6.1.a Time Line Assumption

It is assumed that the design and construction of the Court's Project is desired to be completed as soon as possible. To establish the Project Budget, it will be assumed that the Design Team will receive a notice-to-proceed by August 2018 and construction will commence in 2019.

To account for an extended time table, an increase of 4% per year will need to be considered for inflation|escalation costs if the Project's commencement extends beyond the time line assumption above.

6.1.b Historic Element Assumption

It is assumed that this project will not pursue a historic rehabilitation or historic replica in the design or construction of the Court's building on this Site.

There are varying degrees of historic rehabilitation, restoration, and replication. If it is desired to investigate options related to the historic element of this Site, a more extensive architectural and structural evaluation will be needed to ascertain what additional structural elements or techniques would be needed to accomplish this and if this existing structure will meet the program needs of the Courts. To provide a cost magnitude for a historic rehabilitation, restoration, or replication, and its impact on the Project Budget, consider increasing the Project Budget by \$500,000 for adding minimal historic elements and as much as \$15 million for a full historic restoration or rehabilitation, neither of which is currently considered in the Project Cost Model.

6.1.c Program Assumptions

To establish budget parameters, the following assumptions apply:

- on-site parking will be required for staff, public will utilize the Spiker Parking Structure
- single level (above grade) structure, slab-on-grade with no basement or crawl space
- industry standard exterior design elements and construction materials
- the Courts will be the only tenant in the building
- not seeking LEED accreditation

6.2 MISCELLANEOUS COSTS

The costs below are costs associated with this Project outside of the actual demolition and construction process. They are costs directly absorbed by the Owner and are part of the overall Project Cost Model, unless otherwise noted.

6.2.a Site Acquisition

The Project Cost Model includes a Site Acquisition line item of **\$275,000**.

6.2.b Temporary Relocation Costs

The costs associated with the Temporary Relocation of the Courts is included in the Soft Cost.

6.2.c Site Evaluation

The following costs associated with the overall Project are included in the Soft Costs:

NGA Municipal Court Location Proposal Evaluation, January 2018, RFP 14-18

Trihydro Phase I ESA, April 2018

Terracon ACM Survey, June 2018

NGA Feasibility Study: Cheyenne Municipal Courts Project Budget for 308 West 17th Street, June 2018

6.3 DEMOLITION & ABATEMENT

The goal of the demolition portion of this Project is to remove the existing structure on this Site, including abatement of ACM materials as required, and to prepare a clean, level site suitable for new construction.

6.3.a Demolition Cost Estimates

What should be included in the basic demolition cost estimate: full building demolition and removal of all debris, saw-cutting as required, import clean structural fill material for backfill, compaction and compaction testing, water truck for dust control, erosion control, weather protection, water and sewer disconnects at property line, permitting, traffic control, and basic bond and insurance requirements.

The following items are assumed to not be included in the estimates below: Asbestos, Freon, and other hazardous material removal, Structural Shoring, daily air sampling, Site Surveying, and repair work on the adjacent building.

Asbestos Abatement is a separate budget line item that will include Structural Shoring. Site Surveying and Soils Testing is typically provided by the Owner and is included in Soft Costs. There is freon in some of the mechanical equipment on this Site, \$4,000 will be used as a budgetary value for removal of this item. A budgetary value of \$15,000 will be used for the repair work on the adjacent building. For the daily air sampling throughout the full building demo, a budgetary value of \$25,000 will be used.

Redco Construction: Included in Weaver and Affinity Site Proposal (Appendix A). The cost estimate looks to be inclusive of the major elements of this portion of the Project. The Asbestos Abatement estimate will not be included in the demolition cost estimate for comparison value. Deducting the abatement portion from the bid, and adding the freon, repair to adjacent building, and daily air sampling allowances brings the adjusted demolition cost estimate to: **\$1,191,566.38**

Rocky Mtn Demolition: Provided by the City (Appendix F). Exclusions to this bid include: traffic control, all site facilities, shoring, sitework, temporary utilities, saw-toothing, and weather protection, among others. It does specifically include demolition and removal of



the building, as well as backfill and compaction. The front end of the estimate documentation does state that a 5% labor increase may be incorporated into this estimate. There are several exclusions in this demolition bid that would usually be absorbed by the General Contractor if demolition was part of the full project and under the General Contractor's umbrella. The estimate for these exclusions from our cost consultant is approximately \$500,000. Adding the freon, repair to adjacent building, daily air sampling allowances, and the estimate for the exclusions brings the adjusted amount to \$934,600.00.

Aztec Construction Co: Obtained by S&S for comparison value (Appendix G). The GC cost consultant discussed this Project with Aztec and this cost estimate includes the major elements of this portion of the Project with the exception of freon, repair work to adjacent building, and daily air testing. With these considerations, the adjusted amount is \$994,000.00.

For the purposes of establishing the Project Cost Model, a total demolition cost (not including asbestos abatement) of \$994,000 will be used.

6.3.b Abatement Cost Estimate

Terracon provided the City with an Asbestos Abatement Work Plan (AAWP). The AAWP provides information regarding the state and federal requirements for abatement. It also provides Terracon's suggestions on scope of work, work procedures, and project coordination. There are conditions included in this AAWP that are above and beyond the state and federal requirements for abatement and may be above what this Project requires due to this being a complete demolition, such as administering project oversight through an Environmental Consultant (EC), OSHA material abatement, and pre and post abatement inspections. For budget purposes, only the conditions which address the state and federal regulations will be considered in the Project Cost Model as provided and reviewed by the Design Team's GC and GAC. The conditions that are above and beyond the requirements will not be included in the Project Cost Model at this time.

The Abatement line item of \$304,000 in the Project Cost Model includes:

- Abatement of the materials as required listed in *Section 2.0 Asbestos-Containing Materials*, (Terracon AAWP 2018): \$278,000
 - compliance with state and federal regulations and requirements
 - includes Structural Decking Shoring as needed for abatement
- Treating area with disinfectant: \$8,000
- Structural Joist/Rafter Shoring: \$17,500

The Project Cost Model does not include removing the remainder of the drywall system (areas that are not ACM, as defined by WDEQ) as OSHA drywall. If the building is not demolished in its entirety, these materials, as well as LBP, mold/mildew, and bird droppings and carcasses, may need to be removed according to OSHA guidelines and will impact the Project Budget.

6.4 CONSTRUCTION COST

These costs are typical of new construction and are included in the Project Cost Model, unless otherwise noted.

6.4.a Building Cost

Industry standard pricing typical of new construction is used for budgeting. Currently, for a project of this size and type as described in this report, a cost of \$375 per square-foot is expected. This square-foot cost includes the time line assumption stated previously (construction commencing in 2019) as well as typical construction contingency considerations. Due to the size of this Site 11,500 square-foot will be used for the building footprint, reflecting a construction cost of **\$4,313,000**. This cost was reviewed by the GC cost consultant and deemed an appropriate cost estimate for this Project Cost Model.

6.4.b Sitework Cost

Sitework includes work that is outside of the building footprint, such as: landscaping, parking, paving, underground utilities, site lighting, etc. The budgeted Sitework line item is **\$375,000** in the Project Cost Model and was reviewed by the GC cost consultant and deemed an appropriate cost estimate.

6.5 SOFT COSTS

When establishing a Project Cost Model prior to full Project Programming, Soft Costs are typically a percentage of the overall Project Budget. The Soft Costs will be more defined after Project Programming and Schematic Design are complete.

Project Soft Costs typically include:

- Temporary Relocation
- Environmental Audit
- Hazmat Site Survey
- Architectural and Engineering services
- Topographic Surveying
- Geotechnical Investigations
- IT Cabling and Terminations
- Court Furniture + Security Equipment
- Project Financing
- Design Contingency
- Owner Contingency during construction

6.6 OWNER PROVIDED ITEMS - EXCLUDED

These items are typically owner provided items and not included in the construction costs and therefore are not included in this Project Cost Model at this time.

Signage: code compliant signage is included in the estimated construction costs, however signage associated with decorative interior wayfinding and decorative exterior building identification is typically provided by Owner outside of the construction contract and is therefore not included in the Project Cost Model at this time.

Commissioning: if desired, it is not required and therefore not included in the Project Cost Model at this time.

6.7 PROJECT COST MODEL

As stated previously, every attempt to foresee certain obstacles and challenges were made to establish a responsible Project Cost Model, however this is not a guaranteed project cost. This Project Cost Model is based on preliminary assumptions and will be updated/adjusted after each design phase. Each iteration of



the Project Cost Model will allow the City and Design Team to evaluate the Project Program and align with the established Project Budget. The cost figures are rounded for clarity.

Cheyenne Municipal Court Project Cost Model

308 West 17th Street, Cheyenne, Wyoming

07.16.2018

Site Acquisition	\$ 275,000
Hazardous Material Abatement	\$ 304,000
Demolition	\$ 994,000
Sitework	\$ 375,000
Municipal Court Building	\$ 4,313,000
Project Soft Costs	\$ 2,600,000
Project Cost Model Total	\$ 8,861,000

07 APPENDIX

- Appendix J 2018 Trihydro Phase I ESA and ACM Survey, includes: 2016 Ayres Associate Phase I ESA, 2006 Terracon ACM Survey, and the Chuck West Site Proposal in the Appendix
- Appendix K 2018 Terracon ACM
- Appendix L 2018 Terracon Asbestos Abatement Work Plan
- Appendix M Steil Surveying Site Survey
- Appendix N Demolition Cost Estimate: Redco Construction (included in the Weaver and Affinity Site Proposal)
- Appendix O Demolition Cost Estimate: Rocky Mountain Demolition, Inc.
- Appendix P Demolition Cost Estimate: Aztec Construction Co., Inc.
- Appendix Q KL&A Structural Assessment for Abatement Activity
- Appendix R Site and Existing Building Photos

